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Bill banning harmful chemicals in food advances in California Senate

June 30, 2023 | Food Safety News (USA)
Author: Dan Flynn | Section: News | 955 Words
OpenURL Link

On June 28, the California Senate Committee on Health approved the first-in-the-nation bill to ban five harmful chemicals from candy, cereals, and other processed food.

Assembly Bill 418, which has already passed California's lower house, is getting close to a vote in the Senate that will put it on Gov. Gavin Newsom's desk to be signed into law.

Here's what AB 418 does, according to the most recent staff analysis of the bill:

1. 1) Prohibits, beginning on January 1, 2025, an entity from manufacturing, selling, delivering, distributing, holding, or offering for sale a food product for human consumption that contains any of the following substances:

a) Brominated vegetable oil;

b) Potassium bromate;

c) Propylparaben;

d) Red dye 3; or,

e) Titanium dioxide.

3) Prohibits the provisions of this bill from impairing or impeding any other rights, causes of action, claims, or defenses available under any other law and specifies that the remedies provided by this bill are cumulative with any other remedies available under any other law.

Therefore, B 418 would end the use of brominated vegetable oil, potassium bromate, propylparaben, Red Dye No. 3, and titanium dioxide in food products sold in California.

The bill's supporters say these chemicals are linked to serious health problems, such as a higher risk of cancer, nervous system damage, and hyperactivity.

The European Union has already banned the five substances from use in food, with a narrow exception of Red No. 3 in candied cherries. Given the size of California's economy, AB 418 would set an important precedent for improving the safety of many processed foods.

2) Requires an entity that violates 1) above to be liable, in an action brought by the Attorney General, a city attorney, a county counsel, or a district attorney, for a civil penalty of up to $5,000 for a first violation, and up to $10,000 for each subsequent violation.

Sponsored by Assemblymember Jesse Gabriel, D-Woodland Hills, AB 418 follows Europe's lead and argues that protecting U.S. consumers is the right step, despite alarmist claims from opponents of the bill that it would end the sale of candy and other popular items in the state.

"Today's strong vote is a major step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Gabriel, chair of the Assembly Committee on Privacy and Consumer Protection.

He added, "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives."

"We don't love our children any less than they do in Europe, and it's not too much to ask food and beverage manufacturers to switch to the safer alternative ingredients that they already use in Europe and so many other nations around the globe," said Gabriel.

More than 10,000 chemicals are allowed for use in food sold in the U.S. Nearly 99 percent of those introduced since 2000 were approved by the food and chemical industry, not the Food and Drug Administration, the agency tasked with ensuring our food supply is safe.

Two national non-governmental organizations are backing AB 418: The Environmental Working Group and Consumer Reports.

The state Senate Environmental Quality Committee will next hear and vote on the bill and after that, it should see a vote on the Senate floor.

"The last time the FDA assessed some of these chemicals was almost 50 years ago," said Brian Ronholm, director of food policy at Consumer Reports. "A number of peer-reviewed studies have linked these food chemicals to serious health risks since that time, but the FDA is not required to reexamine them once they're allowed on the market."

"That's why it's so critical for states like California to take action. If this measure is enacted, it would likely prompt food manufacturers to stop putting these toxic chemicals in products sold in the rest of the country – meaning safer food for everyone," he said.

Most chemicals added to food and food packaging to enhance flavor or appearance, or to preserve freshness, are likely safe to eat. But the five food chemicals covered by AB 418 have been linked to a number of serious health concerns. The European Union banned them in 2008, after a comprehensive re-evaluation of the safety of all food additives.

"What are these toxic chemicals doing in our food?" said Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful and that children are likely being exposed much more than adults. It makes no sense that the same products food manufacturers sell in California are sold in the EU but without these toxic chemicals," Little said.

"Our kids need to be protected, too," she added. "These harmful additives have no place in California's food supply."

Children have lower tolerance levels than adults to chemical exposure, and their developing bodies make them especially vulnerable.

Consumers consistently rank food chemical concerns ahead of other food safety issues. But additives are not adequately regulated by the FDA, in large part because of the lack of financial support from Congress for food chemical review.

"For decades, the FDA has failed to keep us safe from toxic food chemicals," said Scott Faber, EWG senior vice president for government affairs.

"The chemical companies keep exploiting a loophole that allows for food additives that have not been adequately reviewed for safety by the FDA. And the FDA consistently fails to reassess chemicals, even in light of new science. The food and confectioners industries know the review process at the FDA is broken," he added.

"In the absence of federal leadership, it's up to states like California to keep us safe from dangerous chemicals in candy, cookies, and other foods our families enjoy," said Faber.

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- **Citation (apa Style)**
  Flynn, D. (2023, June 30). Bill banning harmful chemicals in food advances in California Senate.*Food Safety News (USA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1927AD142C6B8D30.